THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the function of the Committee conferred upon it by international conventions for the prevent ion and con trol of marine pollution, NOTING articl e 1 6 of the International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1973 Convention") and article VI of the Pro tocol of 1978 relating to the 1973 Convention (hereinafter referred to as th e >11978 Protocol") which together specify the amendment procedure of the 1978 Protocol and confer upon the appropriate body of the Organization the function of considering and adopting amendments to the - (hereinafter referred to as th e >11978 Protocol") which together specify the amendment procedure of the 1978 Protocol and confer upon the appropriate body of the Organization the function of considering and adopting amendments to the 1973 Convention, as modified by the 1978 Protocol (HARPOL 73/78), RECALLING ALSO that the Committee adopted rea olu tion HEPC.3S(27) on implementation of Annex III of MARPOL 73/78 by which it ia atated, inter alia, that the revised provisions of Annex III can be treated as equivalent to the existing provisions and hence nothing in HARPOL 73/78 will prevent Parties to Annex III from givi ng effect to the revis ed provisions of Annex III without awaiting the formal entry into force of the revis ed provisions, RECALLING FURTHER that the Committee decided to commence action to amend Annex III to HARPOL 73/78 in ac~ordance with arti cle 16 of HARPOL 73/78, immediatel yupon the entry into for ce, NOTING ALSO that the existing provisions of Annex III of HARPOL 73/78 already came into fo~ce an 1 July 1992, HAVING CONSIDERED, the amendments to Annex III of HARPOL 73 /78, which - immediatel yupon the entry into for ce, NOTING ALSO that the existing provisions of Annex III of HARPOL 73/78 already came into fo~ce an 1 July 1992, HAVING CONSIDERED, the amendments to Annex III of HARPOL 73 /78, which we~eagreed at its twenty-sixth session, modified at its thirtieth and thirty-first sessions and circulated in accordance with article 16(2)(a) of the 1973 Convention, 1. ADOPTS in accordance with article 16(2)(d) of the 1973 Convention amendments to Annex III of HARPOL 73/78, the text of which is set out in th eannex to the present resolution; RESOLUTION MEPC.58(33) (adopted on 30 October 1992) AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 2 - 2. DETERMINES, i naccordance with article 16(2)(£)(iii) of the 1973 Convention , that the amendments shall be deemed to have been accepted on 30 August 1993, unless, prior to that d